

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
BILLY VIZCAINO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, ANDRE BROWN,
ANTHONY FIOL and JOHN DOES (1-20) (first and
last names being fictitious and unknown),

Defendants.
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SUMMONS

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
Plaintiff's situs of accident

To the above-named Defendants

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 23, 2021

Yours, etc.,
WILLIAM SCHWITZER & ASSOCIATES, P.C.

By: John C. Merlino, Esq.
Attorneys for Plaintiff
BILLY VIZCAINO
820 Second Avenue, 10th Floor
New York, New York 10017
(212) 683-3800
File No.: SRY21-018C

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

ANDRE BROWN
c/o New York City Police Department
1 Police Plaza
New York, New York 10038

ANTHONY FIOL
c/o New York City Police Department
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:
BILLY VIZCAINO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, ANDRE BROWN,
ANTHONY FIOL and JOHN DOES (1-20) (first and
last names being fictitious and unknown),

Defendants.

-----X
Plaintiff, BILLY VIZCAINO, by her attorneys, WILLIAM SCHWITZER & ASSOCIATES,
P.C., as and for a cause of action alleges upon information and belief as follows:

1. At all the times herein mentioned, Plaintiff, **BILLY VIZCAINO**, was and still is a resident of the County of Bronx, City and State of New York.
2. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, was a public agency duly constituted and existing under and by virtue of the laws of the City and State of New York.
4. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, maintained a principal place of business in the State of New York.
5. That on or about August 12, 2021, a Notice of Claim was served on the Defendant, **THE CITY OF NEW YORK**, prior to the commencement of this action.
6. That on or about August 12, 2021, Plaintiff, **BILLY VIZCAINO**, herein duly presented in

writing to the Defendant, **THE CITY OF NEW YORK**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

7. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the Defendant, **THE CITY OF NEW YORK**, and the Defendant has failed and refused to make any adjustments of any claim herein set forth.

8. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

9. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a public agency duly constituted and existing under and by virtue of the laws of the City and State of New York.

10. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, maintained a principal place of business in the State of New York.

11. That on or about August 12, 2021, a Notice of Claim was served on the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, prior to the commencement of this action.

12. That on or about August 12, 2021, Plaintiff, **BILLY VIZCAINO**, herein duly presented in writing to the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

13. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, and the Defendant has failed and refused to make any adjustments of any claim herein set forth.

14. A hearing pursuant to section 50-h of the General Municipal Law was held.

15. That all conditions precedent to the bringing of this action has been complied with.

16. That this action was within one year and ninety (90) days after the accrual of the cause of action herein.

17. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, employed various persons including the police officers, law enforcement agents and personnel mentioned herein.

18. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, employed various persons including the police officers, law enforcement agents and personnel mentioned herein.

19. That on or about August 12, 2021, a Notice of Claim was served on the Defendant, **ANDRE BROWN**, prior to the commencement of this action.

20. That on or about August 12, 2021, Plaintiff, **BILLY VIZCAINO**, herein duly presented in writing to the Defendant, **ANDRE BROWN**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

21. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANDRE BROWN**, was a police officer employed by the Defendant, **THE CITY OF NEW YORK**.

22. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANDRE BROWN**, acted within the scope of his duties as an employee, agent and official of the Defendant, **THE CITY OF NEW YORK**.

23. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANDRE BROWN**, was a police officer employed by the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

24. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANDRE BROWN**, acted within the scope of his duties as an employee, agent and official of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

25. That on or about August 12, 2021, a Notice of Claim was served on the Defendant, **ANTHONY FIOL**, prior to the commencement of this action.

26. That on or about August 12, 2021, Plaintiff, **BILLY VIZCAINO**, herein duly presented in writing to the Defendant, **ANTHONY FIOL**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

27. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANTHONY FIOL**, was a police officer employed by the Defendant, **THE CITY OF NEW YORK**.

28. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANTHONY FIOL**, acted within the scope of his duties as an employee, agent and official of the Defendant, **THE CITY OF NEW YORK**.

29. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANTHONY FIOL**, was a police officer employed by the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

30. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **ANTHONY FIOL**, acted within the scope of his duties as an employee, agent and official of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

31. That on or about August 12, 2021, a Notice of Claim was served on the Defendant, **JOHN DOES (1-20)**, prior to the commencement of this action.

32. That on or about August 12, 2021, Plaintiff, **BILLY VIZCAINO**, herein duly presented in writing to the Defendant, **JOHN DOES (1-20)**, the claim for damages herein set forth and upon which

this action is founded and that said claim was presented for adjustment.

33. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **JOHN DOES (1-20)**, were police officers employed by the Defendant, **THE CITY OF NEW YORK**.

34. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **JOHN DOES (1-20)**, acted within the scope of their duties as employees, agents and officials of the Defendant, **THE CITY OF NEW YORK**.

35. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **JOHN DOES (1-20)**, were police officers employed by the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

36. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **JOHN DOES (1-20)**, acted within the scope of their duties as employees, agents and officials

37. of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

38. That on July 5, 2021, the Plaintiff, **BILLY VIZCAINO**, was in front of the premises known as 1155 Morrison Avenue, County of Bronx, City and State of New York and the premises known as 1171 Morrison Avenue, County of Bronx, City and State of New York.

39. That on July 5, 2021, the Plaintiff, **BILLY VIZCAINO**, was on the aforementioned premises, and he caused be injured by the Defendants, their agents, servants and/or employee(s) at the aforementioned premises.

40. That the aforesaid incident was without probable cause or any justification.

41. The aforesaid accident and the injuries resulting therefrom were due to the careless, reckless and negligent manner in which the Defendants hired, retained and trained their police officers; in causing and allowing their officers to assault, battery, attack, maliciously prosecute,

falsely arrest, falsely imprisonment, and use unwarranted unnecessary force, use of excessive force, in wrongfully touching, grabbing, handcuffing and seizing the Plaintiff, without the Plaintiff in any way contributing thereto.

42. The Defendants herein was careless, reckless and negligent in that they violated their duties to persons lawfully on the aforesaid premises and to this Plaintiff in particular, in knowingly, permitting, suffering, allowing and causing Plaintiff physical harm and placing Plaintiff in imminent fear of physical harm and in unlawfully arresting, detaining, and imprisoning the Plaintiff herein without legal right or justification and were further negligent in falsely arresting, falsely imprisoning and maliciously and without probable cause, prosecuting the Plaintiff herein.

43. That by reason of the foregoing and the negligence of the Defendants, the Plaintiff, **BILLY VIZCAINO**, was severely injured, bruised and wounded, suffered, still suffers and will continue to suffer for some time physical pain and bodily injuries, Plaintiff suffered severe emotional distress, Plaintiff's reputation and character were injured and became sick, sore, lame and disabled and so remained for a considerable length of time.

44. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, was compelled to and did necessarily require medical aid and attention, and did necessarily pay and become liable therefore for medicines and upon information and belief, the Plaintiff will necessarily incur similar expenses.

45. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

46. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

47. That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SECOND CAUSE OF ACTION- ASSAULT & BATTERY

48. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 47 inclusive, with the same force and effect as though more fully set forth at length herein.

49. That at the times of the above-stated incident and at all times hereinafter mentioned, Plaintiff, **BILLY VIZCAINO**, was unlawfully assaulted and battered.

50. That is the time of said incident, assault and battery, the Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given to them by Defendant, **THE CITY OF NEW YORK**.

51. That is the time of said incident, assault and battery, the Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given to them by Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

52. That by reason of and in consequence of said assault and battery on the part of the Defendants, their agents, servants and/or employees, the Plaintiff, **BILLY VIZCAINO**, sustained serious bodily injuries with accompanying conscious pain and suffering and was rendered sick, sore, lame, disabled, and bruised, and sustained severe mental distress that some of the said injuries may be permanent; that he was physically and verbally assaulted and battered at the time of his attack, and that he was unlawfully deprived of his liberty, rights and freedom.

53. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to

attend to his usual occupation in the manner required.

54. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

55. That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE THIRD CAUSE OF ACTION- CONSTITUTIONAL RIGHTS

56. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 57 inclusive, with the same force and effect as though more fully set forth at length herein.

57. That as a result of the Defendants' concerted and unlawful use of excessive force and assault and battery of the Plaintiff, **BILLY VIZCAINO**, the Plaintiff was deprived of his liberty without due process of law in violation of his rights under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983; AND The Plaintiff was further deprived of his right to due process under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983 by the Defendants' use of excessive physical force.

58. That the Defendants' violations of Plaintiff's constitutional and civil rights and concerted, unlawful use of excessive force, assault and battery of the Plaintiff, **BILLY VIZCAINO**, was perpetrated by the Defendants pursuant to and under color of law.

59. That the aforementioned acts, omissions and conduct of the Defendants, set forth above in paragraphs 48 through 49 inclusive, resulted in the Plaintiff suffering physical injury, impairment of health, severe emotional distress, impairment of reputation and character, loss of income, deprivations and violations of his Fourth, Fifth and Fourteenth Amendment rights as well as rights secured and

guaranteed by 42 U.S.C. §1983 and the laws of the United States.

60. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

61. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

62. That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE FOURTH CAUSE OF ACTION- FALSE ARREST AND IMPRISONMENT

63. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 64 inclusive, with the same force and effect as though more fully set forth at length herein.

64. That the Defendants were careless, reckless and negligent in falsely arresting, maliciously prosecuting and falsely imprisoning the Plaintiff without reasonable and probable cause.

65. That as a result of the negligence of the Defendants, the Plaintiff, **BILLY VIZCAINO**, was unlawfully arrested, detained and imprisoned without legal right or justification.

66. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

67. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

68. That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE FIFTH CAUSE OF ACTION- MALICIOUS PROSECUTION

69. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1

through 68 inclusive, with the same force and effect as though more fully set forth at length herein.

70. That the Defendants were careless, reckless, negligent in maliciously and without probably cause, prosecuting the Plaintiff herein.

71. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

72. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SIXTH CAUSE OF ACTION

73. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 72 inclusive, with the same force and effect as though more fully set forth at length herein.

74. That the Defendants were careless, reckless, negligent and failed to use reasonable care during the aforesaid incident.

75. That as a result of the negligence of the Defendants, the Plaintiff, **BILLY VIZCAINO**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disabled and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

76. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

77. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SEVENTH CAUSE OF ACTION

78. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 77 inclusive, with the same force and effect as though more fully set forth at length herein.

79. That at the time of said assault, the agents, servants and/or employees were acting in the course and general scope of their employment in pursuance of the authority given to them by the Defendant, **THE CITY OF NEW YORK**.

80. That upon information and belief, the Defendant, **THE CITY OF NEW YORK**, herein knew or should have known, that the agents, servants and/or employees were unfit for the employment for which they were hired.

81. That at the time of said assault, the agents, servants and/or employees were acting in the course and general scope of their employment in pursuance of the authority given to them by the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

82. That upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, herein knew or should have known, that the agents, servants and/or employees were unfit for the employment for which they were hired.

83. That by hiring and retaining the aforesaid agents, servants and/or employees, the Defendant, **ANDRE BROWN**, herein created a propitiated and situation where it was likely that said agent servant and/or employee would, as a result of his history, character, temperament and propensity, threaten, assault and strike others.

84. That by hiring and retaining the aforesaid agents, servants and/or employees, the Defendant, **ANTHONY FIOL**, herein created a propitiated and situation where it was likely that said agent

servant and/or employee would, as a result of his history, character, temperament and propensity, threaten, assault and strike others.

85. That by hiring and retaining the aforesaid agents, servants and/or employees, the Defendant, **JOHN DOES (1-20)**, herein created a propitiated and situation where it was likely that said agent servant and/or employee would, as a result of his history, character, temperament and propensity, threaten, assault and strike others.

86. That the Defendant, **THE CITY OF NEW YORK**, knew or should have known in the exercise of due and reasonable care that the aforesaid agents, servants and/or employees were vicious and potentially dangerous.

87. That the Defendant, **THE CITY OF NEW YORK**, was negligent in the hiring of Defendant, **ANDRE BROWN**, and supervision of the aforesaid agent, servant and/or employee.

88. That the Defendant, **THE CITY OF NEW YORK**, was negligent in the hiring of Defendant, **ANTHONY FIOL**, and supervision of the aforesaid agent, servant and/or employee.

89. That the Defendant, **THE CITY OF NEW YORK**, was negligent in the hiring of Defendant, **JOHN DOES (1-20)**, and supervision of the aforesaid agent, servant and/or employee.

90. That as a result of the negligence of the Defendant, **THE CITY OF NEW YORK**, the Plaintiff, **BILLY VIZCAINO**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disables and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

91. That the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, knew or should have known in the exercise of due and reasonable care that the aforesaid agents, servants and/or employees were vicious and potentially dangerous.

92. That the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in the hiring of Defendant, **ANDRE BROWN**, and supervision of the aforesaid agent, servant and/or employee.

93. That the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in the hiring of Defendant, **ANTHONY FIOL**, and supervision of the aforesaid agent, servant and/or employee.

94. That the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in the hiring of Defendant, **JOHN DOES (1-20)**, and supervision of the aforesaid agent, servant and/or employee.

95. That as a result of the negligence of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, the Plaintiff, **BILLY VIZCAINO**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disables and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

96. That by reason of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been unable to attend to his usual occupation in the manner required.

97. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

98. That as a result of the foregoing, the Plaintiff, **BILLY VIZCAINO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff, **BILLY VIZCAINO**, demands judgment against the Defendants for the First Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the Second Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the Third Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the

Fourth Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the Fifth Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the Sixth Cause of Action in excess of the jurisdictional amounts of the lower Courts, and for the Seventh Cause of Action in excess of the jurisdictional amounts of the lower Courts, together with the costs and disbursements of this action.

Dated: New York, New York
November 23, 2021

Yours, etc.,

WILLIAM SCHWITZER & ASSOCIATES, P.C.

By: John C. Merlino, Esq.

Attorneys for Plaintiff

BILLY VIZCAINO

820 Second Avenue, 10th Floor

New York, New York 10017

(212) 683-3800

File No.: SRY21-018C

ATTORNEY'S VERIFICATION

I, John C. Merlino, Esq., an attorney duly admitted to practice in the Courts of the State of New York, hereby affirms the following to be true under the penalty of perjury:

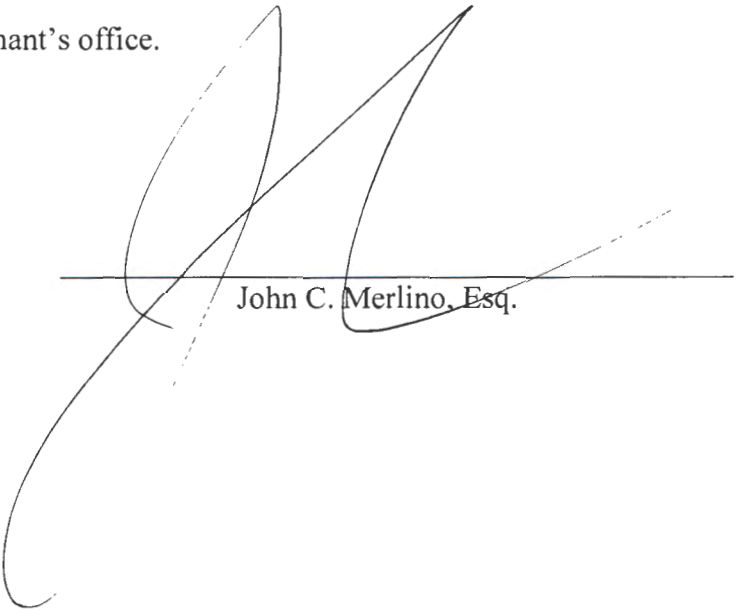
That I am associated with the firm WILLIAM SCHWITZER & ASSOCIATES, P.C., the attorneys for the Plaintiff in the within action and as such, I am fully familiar with the facts and circumstances surrounding this matter based upon my review of the contents of the file maintained by this office.

That I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof; that the same is true to my own knowledge except as to the matters therein stated to be alleged upon information and belief; and, as to those matters, I believe them to be true.

That the reason this verification is made by your affirmant and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is maintained.

That the grounds for your affirmant's belief as to all matters not stated upon my own knowledge are as follows: facts, investigations, reports, records, and documents contained in Plaintiff's file maintained by your affirmant's office.

Dated: New York, New York
November 23, 2021



John C. Merlino, Esq.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

BILLY VIZCAINO,

Plaintiff,

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THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, ANDRE BROWN,
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last names being fictitious and unknown),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

WILLIAM SCHWITZER & ASSOCIATES, P.C.

Attorneys for Plaintiff

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